



FEDERAL BUREAU OF INVESTIGATION

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



JUSTIFICATION AND APPROVAL (J&A) FOR OTHER THAN FULL AND OPEN COMPETITION

UNCLASSIFIED

Requisition Number: SHOP-PR-26-001640 Tecan Fluent 480

Date: 04/13/2026

Estimated Contract Dollar Value

1. Identification of the agency and contracting activity.

The U.S. Department of Justice, Federal Bureau of Investigation (FBI), Procurement Section (PS), National Acquisition Programs Unit (NAPU), has prepared this justification for other than full and open competition for the acquisition of a Tecan Fluent on behalf of the Laboratory Division (LD), Biometrics Analysis Section (BAS), DNA Casework Unit (DCU).

The nature and/or description of the action being approved, i.e., sole source, limited competition, establishment of a new source, etc.

In accordance with a statutory exception to the fair opportunity process, the FBI contemplates the award of a sole-source, firm-fixed-price, one-time, delivery order of one (1) Tecan Fluent 480 instrument to Tecan USA, Inc., 9401 Globe Center Drive, Suite 140, Morrisville, NC 27560.

2. A description of the supplies or services required to meet the agency's needs.

The FBI Laboratory currently uses Tecan Robotic Workstations throughout the DNA analytical process. This equipment is manufactured by Tecan, U.S. Inc. and they are the only authorized vendor that can perform preventive maintenance and routine service on the Tecan Robotic Workstations. Validation was performed and the Tecan automated workstations proved best suited for the DNA automated processes used by the FBI. This comprehensive evaluation resulted in the recommendation to use Tecan, US Robotic Workstations for DNA analysis at the FBI Laboratory.

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The purchase of the Tecan Fluent 480 will result in more efficient processing of DNA samples, using the current validated robotic platform. Use of any other robotic workstations other than those currently specified in the Laboratory Division's quality documentation would require development of new protocols, reviews, and approvals. Development of the aforementioned protocols is a lengthy, time-consuming process that entails detailed input by all Biologists, Forensic Examiners, the Unit Chief and the Section's Technical Leader. The finished product requires review by the Quality Assurance and Training Unit and approval by the Unit Chief, Technical Leader and the FBI Quality Manager.

In summary, over a decade of work has been committed to the DNA testing process and the instrumentation used. To make any changes would require extensive performance testing, validation, concordance testing, and re-establishment of procedures and re-writing of manuals, to remain in compliance with the QA Standards. A substantial commitment of time and resources has already been dedicated to establishing the current procedures. The LD does not at present have the staffing and other resources to dedicate to the lengthy process of testing any new instrumentation. In addition, Tecan Workstations are fully integrated with the Sample Tracking and Control System (STaCS) Software used by the FBI Laboratory. The use of any other robotic workstation would require modifications to the current version of STaCS Software.

This product must meet defined technical, performance, and quality characteristics to ensure compatibility with the existing Lab workflow, compliance with accreditation standards, and admissibility of results in judicial proceedings. The requirement supports high-volume, time-sensitive forensic operations conducted at the FBI Laboratory facility. Continuity and consistency of performance are essential to avoid disruption to forensic casework, revalidation efforts, and potential impacts to investigative and judicial outcomes.

3. The statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304 (a)(1) as implemented by the Federal Acquisition Regulation (FAR) Overhaul – Part 6, 6.103-1, *"Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."*

4. Demonstrate the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.



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A sole source letter was obtained from TECAN USA, Inc. that they are the only vendor that sells the Tecan Fluent 480. An effort was made to search SAM.gov to see if there were additional current certified sellers or resellers for the brand Tecan Fluent 480, and there were none.

- 5. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.1 and, if not, which exception under 5.101 applies.**

The sole-source nature of this requirement is driven by compatibility, validation, accreditation, and evidentiary reliability requirements rather than vendor preference. The FBI researched for sellers to provide Tecan Fluent instruments, and there are no resellers.

- 6. The anticipated dollar value of the proposed acquisition, including options if applicable, and a determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.**

The contracting officer shall ensure all pricing is fair and reasonable by conducting cost price analysis on a previous Tecan U.S. Inc. contract with the FBI, 15F06725P0000888, as well as pricing research on other Government Wide sites for similar type requirements and vendors in both the open and GSA marketplace. The pricing has been consistent over the years with minimal increase from one POP to the next.

- 7. A description of the market research conducted and the results.**

The Federal Bureau of Investigation's description of the market research technique(s) it employed to determine the necessity of restricted (other than full and open) competition is provided below.

Contacted knowledgeable individuals in Government and industry regarding market capabilities to meet requirements. Ongoing contact with knowledgeable individuals in other DNA Government laboratories in the industry regarding market capabilities and challenges of obtaining instrumentation from different vendor resources. Querying the Governmentwide database of contracts and other requisition instruments intended for use by multiple agencies available at <https://www.contractdirectory.gov/contractdirectory/> and other Government and commercial databases that provide information relevant to agency acquisitions. SHOP platform was searched for other FBI capabilities that might meet the requirements, and none were available.



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Participating in interactive, on-line communication among industry, requisition personnel, and customers.

Contacting industry personnel regarding market capabilities in other DNA labs around the U.S.
Reviewing catalogs and other generally available product literature published by manufacturers, distributors, and dealers or available on-line.

Reviewed catalogs and other generally available product literature published by manufacturers, distributors, and dealers available on-line.

Reviewing contractor websites to ascertain available products to meet this requirement.

When considering the advancement of DNA testing capabilities or the replacement of products, the BAS routinely evaluates offerings from different vendors. The intent is to identify the best product for the intended scientific application while also considering the production level infrastructure into which that product must be integrated.

8. Any other facts supporting the use of other than full and open competition.

Tecan U.S. Inc, is the only manufacturer and the only authorized seller of the Tecan Fluent 480. Tecan USA, Inc. does not permit any outside vendors to provide maintenance and such action would void the instrument warranty. Per our QA/QC standards the annual PM service must be performed by the provider or a qualified outside vendor. This is for a product, the services would also be the maintenance from Tecan on their robots – also something that they only authorize to be performed by Tecan technicians.

Implementation of alternative products would require extensive performance testing, concordance studies, revision of standard operating procedures, modification of quality assurance systems, retraining of personnel, and temporary disruption or suspension of DNA uploads. Such disruption would negatively affect compliance with statutory mandates, backlog reduction efforts, and national security mission requirements.

9. A listing of any sources that expressed a written interest in the acquisition.



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This requirement was not publicly synopsisized. As such, no other sources have expressed an oral or written interest.

10. A statement of any actions the agency may take to remove or overcome any barriers to competition, if subsequent acquisitions are anticipated.

The FBI will continue to conduct market surveys and research available through industry shows and technology releases in the form of papers and journals. This will be used to identify potential sources for subsequent acquisitions. If potential sources are identified, it will be necessary to submit to both extended compatibility and eventual validation studies, but due to the technical and specific nature of this instrument, no other vendor has been found at this time.

